

Criminal Law, Investigation and Procedure Victoria
Investigation
Questioning
Admissibility of admissions and confessions
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[Q.2000] Admissions – Admissibility pursuant to [Evidence Act 2008](#)

An “admission” is defined in the [Evidence Act 2008](#), to mean a “previous representation”¹ that is (a) made by a person who is or becomes a party to a proceeding (including a defendant in a criminal proceeding); and ((b) adverse to the person's interest in the outcome of the proceeding.²

An admission is admissible as an exception to the hearsay and opinion rules, pursuant to [s 81 of the Evidence Act 2008](#). Further, if evidence is given by a person who saw, heard or otherwise perceived the admission being made (“first-hand hearsay”) that evidence will also be admissible.³

[Section 83 of the Evidence Act 2008](#), renders an admission by a third party (eg a co-defendant's record of interview) admissible in the trial of a defendant if the defendant consents.⁴ This is a significant departure from the common law.

[Sections 84 and 85 of the Evidence Act 2008](#) replace the common law as to the “voluntariness”⁵ requirement for the admissibility of an admission or confession. Once the defendant raises an issue that the admission was influenced by conduct (or threats of conduct) that was violent, oppressive⁶, inhuman or degrading, [s 84](#) is triggered and the onus rests with the prosecution to demonstrate that the admissions were not influenced by such conduct, or threats of that kind.⁷

Section 85 focuses on the reliability of admissions by defendants. The purpose of this section is to ensure that only admissions which are generally reliable or truthful are admitted into evidence.⁸ It applies only to admissions made (a) to, or in the presence of, an investigating official (eg police officer) investigating an offence; or (b) as a result of the act of a person capable of influencing the decision whether to prosecute.⁹ Evidence of an admission will be inadmissible unless the circumstances in which it was made were such as to make it unlikely that the truth of the admission was adversely effected.¹⁰ As for the circumstances relevant to the issue, the court may take into account any relevant condition or characteristic of the defendant, including age, personality, education, and any mental, intellectual or physical disability. In addition, the court may also take into account the nature and manner of any threat, promise or other inducement made to the defendant.¹¹ That is, the prosecution can only introduce an admission, challenged as unreliable, if it first overcomes the burden in **s 85** on the balance of probabilities. The prosecution must show that the circumstances surrounding the admission make it unlikely that the truth of the admission was adversely affected.¹²

Section 86 applies only to oral admissions made by a defendant to an investigating official in response to a question. It provides that a document prepared by the investigating official is inadmissible unless the defendant acknowledged the document as true by signing, initialling or marking it.¹³

The judicial discretions to exclude an admission are in **ss 90** and **138 of the Evidence Act 2008**. **Section 90** provides for a judicial discretion to exclude an admission where, having regard to the circumstances in which the admission was made, it would be unfair to the defendant to admit the evidence.¹⁴ See [Q.2180].

Section 138 provides for a judicial discretion to exclude an admission which was improperly or illegally obtained. See [Q.2200]. Such evidence is not to be admitted unless the desirability of admitting the evidence outweighs the undesirability of admitting the evidence.¹⁵ An admission is deemed to have been “obtained improperly” if the interrogator did (or omitted to do) an act likely to impair substantially the ability of the person questioned to respond rationally to the questioning; or if the interrogator made a false statement in the course of questioning causing the admission to be made.¹⁶ Evidence is also deemed to be “improperly obtained” where a person under arrest is questioned by an investigating official who, before starting the questioning, did not caution the person that he or she does not have to say or do anything but that anything that person does say or do may be used in evidence.¹⁷ Further, an admission is also deemed to be “improperly obtained” where the questioning by an investigating official who did not have the power to arrest, failed to caution the person after forming the belief that there was sufficient evidence of an offence.¹⁸ The considerations to be taken into account in the exercise of this discretion

are set out in [s 138\(3\)](#). They include the probative value of the evidence, the importance of the evidence, the nature of the offence, the gravity of the impropriety or contravention, whether the impropriety or contravention was deliberate or reckless, whether the impropriety or contravention was inconsistent with a right recognised by the International Covenant on Civil and Political Rights 1966 whether any other proceeding has been taken in relation to the impropriety or contravention and the difficulty of obtaining the evidence without impropriety or contravention. The onus rests upon the defendant to demonstrate that the admission was improperly or illegally obtained. Once the defendant demonstrates this, the onus shifts to the prosecution to persuade the court that the evidence should be admitted.¹⁹

[Q.2020] Pre-Evidence Act 2008 “voluntariness” of confession

Prior to the *Evidence Act 2008*, a confession was “voluntary” if it was made in the exercise of a free choice whether to speak or remain silent.²⁰ Thus, a police officer's conduct, if it involved duress, intimidation, persistent importunity, sustained or undue insistence or pressure, inducement or oppression may render a confession involuntary²¹ and therefore inadmissible. If an accused spoke because his or her will has been overborne, his or her confessional statement was involuntary and inadmissible. In determining whether the confessionalist's will was in fact overborne, the age, background and psychological condition of the confessionalist should be taken into account, as well as the circumstances under which the confession came to be made.²²

As this is not the test pursuant to [ss 84 and 85 of the Evidence Act 2008](#), the cases pre-dating those provisions may be of limited use.

The onus of proof in relation to voluntariness is retained in [s 464J\(b\) of the Crimes Act 1958](#):

Nothing in this subdivision affects— ...

- (b) the onus on the prosecution to establish the voluntariness of an admission or confession made by a person suspected of having committed an offence.

Thus once the question of voluntariness was raised the Crown was required to establish, on the balance of probabilities, that the statements were voluntary.²³

The inquiry focused on all the circumstances which might have borne on the mind of the accused, an assessment of the effect of any verbal and non-verbal conduct of the police on the mind of the confessionalist.²⁴

Where an interview is conducted in an ostensibly fair fashion, but the suspect lacks understanding that questions need not be answered, and, as a result, feels compelled to participate in the interview process, the subsequent interview would not be voluntary.²⁵

Police questioning which was hostile, even demeaning, and which was conducted over almost a whole day was held not to be “oppressive” in the circumstances.²⁶ Where the questioning is “oppressive”, the entire interview may be excluded.²⁷

Inducements such as an offer for bail²⁸ may result in a confession being found to be involuntary.²⁹ For example, any proposition that “It would be better for you if ...”, would amount to an inducement³⁰ although a mere exhortation to tell the truth will not.³¹ A confession elicited by police officers posing as a criminal gang who have thereby gained the trust of a suspect is “voluntary” and admissible. It is not regarded as having been obtained by inducement or unlawful means.³²

Where a trial judge held that the suspect was engaging in “prevarication and evasion”, it was open to find the interview to have been voluntary.³³

[Q.2040] Definitions: confession and admission

A “confession” involves an admission of guilt of all the elements of a crime whereas an “admission” tends to prove a fact which constitutes an element of the crime.³⁴

Section 464H(1) of the *Crimes Act 1958* provides that evidence of a confession or admission is inadmissible unless certain preconditions are fulfilled.³⁵ Those pre-conditions are set out in s 464H(1)(c), (d), (e) or (f). Thus, pursuant to s 464H(1)(c), a confession or admission is only admissible if the confession or admission was made before questioning commenced, it must be recorded by audio or audiovisual recording, or the confirmation of it was recorded by audio or audiovisual recording. Pursuant to s 464H(1)(d), if the confession or admission was made during questioning at a place where interview facilities were available, the questioning must be recorded by audio or audio-visual means to be admissible. Pursuant to s 464H(1)(e), if the confession or admission was made at a place where interview facilities were not available, the confession or admission will be admissible if the questioning was recorded or the substance of the confession or admission was confirmed by audio or audiovisual recording. Having recorded the confession or admission in any of these circumstances, the audio or audiovisual recording must be available to be tendered in evidence, in which case that recording would be admissible.

Section 464H(1)(d) is relevant where the questioning of a suspect takes place in two places at two times (or at one place but at two times) and the first part of the questioning is not tape-recorded. Is the subsequent tape-recorded confession admissible? The High Court has grappled with these issues in two cases,³⁶ both involving an interpretation of the words, “confession ... made during questioning” in s 464H(1)(d). In both cases, the court split four to three, with the same dissentients. It is clear that “the questioning” of a suspect will not always be the same as (ie coterminous

with) “the interview”.³⁷ The majority in both cases held that “questioning” may be a divisible process, and that all s 464H(1)(d) required was that the confession or admission be tape-recorded. Thus, if preliminary questioning, or questioning subsequent to a confession or admission, is not tape-recorded by a police officer, that failure to tape-record does not render the taped confession inadmissible.

In *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385, the suspect was arrested, taken to a police station (Frankston) where he was questioned and his responses were noted. No tape-recorded interview was conducted at that time, although facilities existed at that police station. On the way to the second police station (St Kilda Road), while in a police car, the suspect made certain admissions, which were not taped. No facilities for taping existed in the car. At the second police station, the suspect made significant admissions (not a confession) on video-tape. At trial, the prosecution did not lead evidence of the conversation at Frankston. The defence challenged the video-taped interview on the basis that it failed to record the entire questioning from the time it commenced (at Frankston) until its completion (at St Kilda Road), in breach of s 464H(1)(d). The High Court was asked to determine whether the taped admissions arose from a single process of questioning or whether the questioning process was divisible. Mason CJ concluded that Pollard made “two confessions, each made at a different time and place”.³⁸ The second admission complied with a construction of s 464H(1)(d) which merely requires that the admission be taped, not that the entire questioning be taped. Deane J construed the words of the section, “questioning at a place” as “referring not to the whole of the overall questioning but to the particular period of questioning in which the relevant confession or admission was made”.³⁹ McHugh J took the same approach stating that:⁴⁰

It is not a condition of the admissibility of a confession or admission that any earlier or later questioning at another place must also have been tape-recorded.

The fourth member of the majority, Toohey J, held that what will amount to “questioning” depends on the circumstances, in particular proximity of time and place; that these matters are a question of degree.⁴¹ However, in this case, he found that the questioning was divisible and that the tape-recording was properly admitted into evidence at the trial. In contrast, the joint minority judgment held the whole of the questioning was required by s 464H(1)(d) to be tape-recorded, with the effect that they held the tape-recording to be inadmissible.⁴²

The minority in *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 took the same approach, again in the minority, in *R v Heatherington* (1994) 179 CLR 370; 68 ALJR 418; 71 A Crim R 18; 120 ALR 591.⁴³ In that case, the suspect was interviewed at the Dandenong Police Station for about five minutes. That interview was not tape-recorded. Further inquiries were made for the next 40 minutes followed by a taped interview, containing a

full confession, which lasted almost two hours. In this case, the “questioning” occurred at the same place but on two occasions, the first of which was not taped. Was the subsequent taped interview inadmissible in breach of [s 464H\(1\)\(d\)](#) or did it comply with that provision? In a joint judgment, Mason CJ, Deane and McHugh JJ stated that:⁴⁴

[T]he legislation does not provide that a confession is inadmissible unless the entire interrogation is tape-recorded and the tape-recording is available to be tendered in evidence.

The preferred construction of [s 464H\(1\)\(d\)](#) turned on the question of substance: whether the earlier questioning was part of the same “questioning” which produced the confession.⁴⁵ They considered the criteria for determining whether the questioning process is divisible or not for the purpose of satisfying [s 464H\(1\)\(d\)](#) and said:⁴⁶

The issue here then is whether the initial period of questioning and the second period should be characterised as the same questioning. The resolution of such an issue involves questions of degree and may require a weighing of a variety of factors including the proximity of time and venue, the relationship between the occasions on which questioning took place and the relationship between the interrogations which took place on those occasions. Thus, it may transpire that, on the second occasion, the questioning is largely influenced by what was said on the earlier occasion, in which event one might more readily conclude that a confession made on the second occasion was made in the same or the one period of questioning which began on the first occasion and ended on the second occasion.

Toohy J agreed that “It was necessary to look at the content of the earlier conversation as well as the time interval.”⁴⁷ The majority in *R v Heatherington* (1994) 179 CLR 370; 68 ALJR 418; 71 A Crim R 18; 120 ALR 591 held that the taped interview was “self-contained” and of a very different nature to the “lead up” interview. Consequently, the failure to tape the first five-minute conversation did not deprive the later taped interview of its admissibility. It was therefore held to have been properly admitted at the trial.

Where there was a “referral back” to earlier untaped questioning, it has been held that the questioning which fell to be tape-recorded under [s 464H](#) did not commence before the formal interview.⁴⁸

The phrase “anything said” in [s 464H\(1\)\(d\)](#) of the *Crimes Act 1958*, ought to be construed to mean anything said in response to questioning amounting to a confession or admission.⁴⁹ Where a police officer encouraged admissions off camera, and there was no attempt to confirm the off-camera admissions, the admissions ought to be excluded.⁵⁰

Where there had been some brief questioning involving admissions (untaped at a police station where taping facilities were available) prior to a record of interview and those questions and answers had been confirmed on tape, the taped interview was admissible despite there having been only one period of “questioning”.⁵¹

An admission made to a person not in authority and overheard by a police officer is not made “to” an investigating official for the purposes of s 464H.⁵²

Where evidence of a confession or admission is not recorded (by audio or by audiovisual means), or is otherwise inadmissible pursuant to s 464H(1), a court may admit the confession or admission if satisfied (on the balance of probabilities) that the circumstances are exceptional and that they justify the reception of the evidence.⁵³

The audio recording or audiovisual recording containing any confession or admission must be given to the person questioned or his or her legal practitioner, without charge, as soon as practicable but no later than seven days after it was made.⁵⁴

If statements are taken from witnesses, who later become “suspects” (and are subsequently interviewed on tape), the original statements have been held not to have been made during “the questioning”, and accordingly, need not be tape-recorded.⁵⁵ In those circumstances, there is no infringement of s 464H(1), and the interviews remain admissible.

In a trial for offences of incest, where the applicant smacking the complainant on the bare bottom was left to the jury as being capable of amounting to an admission, it was held to have been properly admitted, although the judge must then direct the jury that, before it could use the evidence of a conversation with the applicant, the jury needed to accept that: (i) the applicant actually made the alleged admission in the terms alleged and (ii) the applicant's alleged admission was truthful.⁵⁶ The failure to so direct resulted in a substantial miscarriage of justice.⁵⁷

Where routine evidentiary rulings in relation to the admissibility of admissions were made, they should not be challenged by an interlocutory appeal to the Court of Appeal.⁵⁸

[Q.2060] Effect of non-compliance with duty to audio or audiovisually record confession or admission

The duty to record by audio or audiovisual recording a confession or admission arises from the requirements of s 464H of the *Crimes Act 1958*. If there has been a failure to comply with the duty, the evidence of the confession or admission is inadmissible⁵⁹ unless the prosecution satisfies the court on the balance of probabilities that the circumstances (a) are exceptional and (b) justify

the reception of the evidence.⁶⁰ Where an admission or confession is not tape-recorded merely because the tape recorder malfunctioned, the evidence may be properly admitted pursuant to the discretion in [s 464H\(2\)](#).⁶¹

[Q.2080] Duty to audio or audiovisually record rights and responses of person in custody

In relation to persons in custody, an investigating official must record by audio or audiovisual recording, if practicable, the giving of the caution and the response, if any, as well as any questioning that takes place.⁶² In addition, the giving of any information as to the right to silence, the right to communicate with a friend, relative and legal practitioner, any response to that information, and any questioning that takes place pursuant to an order under [s 464B\(5\)](#), must be audio or audiovisually recorded.

[Q.2100] Summary offences – questioning (not recorded)

[Section 464H\(4\)](#) permits audio or audiovisual recordings of confessions or admissions in summary offences. However, in relation to a summary offence, the fact that a confession or admission is not so recorded is not a basis for exclusion. Unrecorded confessions and admissions are admissible, although still subject to [ss 84 and 85 of the Evidence Act 2008](#). Such confessions or admissions are also subject to the discretionary exclusions in [ss 90 and 138 of the Evidence Act 2008](#). Thus there remains scope for police “verbals”,⁶³ or concocted admissions (or confessions), in relation to summary matters when they are not recorded.

[Section 86 of the Evidence Act 2008](#) excludes any document made pursuant to an oral admission, where the defendant has not acknowledged the document by signing, initialling or marking it.⁶⁴ Oral evidence may still be given of an oral admission in a summary matter.

[Q.2120] Excluding particular questions/answers from an interview

Generally, all questions and answers in interviews must meet the same tests of admissibility that would be applied were they to be asked, and answered, in the course of examination-in-chief of the suspect as a witness in the trial.

It is proper for the police to interrogate by putting to the suspect the facts as they know, believe or suspect them to be in order to obtain the suspect's response.⁶⁵ However, questions by police which assert their belief in a suspect's guilt, which are answered by a denial, are strictly inadmissible.⁶⁶

Questions and answers which are irrelevant to the alleged offence ought to be excluded as they do not meet the general threshold test for admissibility of evidence. An answer, and the question to which it refers is relevant if it is an admission, or is capable of being regarded as an admission, of

guilt or of a fact relevant to the proof of guilt.⁶⁷ Many questions, while not strictly relevant, are neutral in their effect and will not be excluded if the “flow” or gist of the interview is impeded by their exclusion – they may be admitted in order to place other, relevant questions in context.⁶⁸

Answers given in interviews must not be equivocal if they are to be regarded as a confession or admission.⁶⁹ An answer which is not capable of being regarded as an admission is on the face of it irrelevant and inadmissible.⁷⁰

As the answers to questions constitute evidence, questions which do not have any answer (where there is “no response” or “inaudible”) or an unresponsive answer may be excluded.

Generally, questions or answers referring to criminality other than that alleged as the subject matter of the interview are excluded.⁷¹

Questioning that is oppressive, directed to breaking down or destroying the answers, or amounts to intimidation, persistent importunity,⁷² sustained or undue insistence or pressure or are in the nature of cross-examination may result in exclusion of the interview.⁷³ A person in custody ought not be subjected to any form of cross-examination the tendency of which is in fact to extort admissions or to overcome the mental resistance to making admissions – even when the interrogator's sole desire is to find out the truth.⁷⁴

Where the questions of an interviewing officer express “undisguised ridicule and derision” in relation to answers given, such questions and answers are likely to be excluded from an interview as inadmissible.⁷⁵ Answers in an interview which respond to cross-examination (or “leading questions”⁷⁶) will not necessarily be excluded. However, persistent cross-examination of an accused with an IQ of 71 was found to have been obtained unfairly, and should have been excluded in the exercise of the unfairness discretion.⁷⁷ As the Court said in *R v Pritchard* [1991] 1 VR 84; (1991) 49 A Crim R 67:⁷⁸

The police would not at the trial have been permitted to express their incredulity or total disbelief in the applicant's answers. Why should they be allowed to do so by the form of the questions chosen to be put to the applicant which can be, as they were, so vividly reproduced before the jury at trial?

Where a question is ambiguous, or “double-barrelled” (two questions are asked with one answer given), it may be excluded as a matter of fairness. The *Judges' Rules* require that a prisoner making a voluntary statement must not be cross-examined, and no questions should be put to him about it except for the purpose of removing ambiguity in what he has actually said.⁷⁹

Questions put by police which include a legal term of art (for example: “Did you steal the car?”), are generally inadmissible. A party cannot be asked to admit a conclusion which depends upon a legal standard.⁸⁰

Where a suspect was questioned by police officers in an interview as to the motive that a complainant could have had to lie with respect to her allegations, such questions are inadmissible as they have no probative value.⁸¹

Unless making a legitimate inquiry into the suspect's memory as to certain events, interrogation consisting of questions beginning “Do you recall ...?” is objectionable as it is unfair, denying the suspect the opportunity of outright denial of the allegations. It assumes, or gives apparent validity to the complainant's allegations.⁸²

Where a police officer knowingly misleads,⁸³ tricks or otherwise deceives the suspect by suggesting that certain evidence is at hand, which is untrue, the question and answer may be excluded in the exercise of the court's discretion. That may result in the deletion of particular questions and answers that are tainted by the deception. In some cases, the entire confession may be inadmissible where it is induced by an untrue representation.⁸⁴ Where a suspect is told, in the course of questioning, an “interrogatory lie”, the answers, or the entire interview may be excluded, depending upon the nature and consequences of the lie told to the suspect. Thus, a false representation as to an important fact linking an accused to a crime, not recognised by the accused as being false, may render a confession involuntary.⁸⁵ Where the lie/misrepresentation is told to an accused in good faith,⁸⁶ but the accused is nevertheless thereby placed under a material misapprehension as to an important fact, the confession is likely to be excluded.⁸⁷ But where a police officer made an innocent misrepresentation (that the DNA of the accused was on the murder weapon), and that misrepresentation was not likely to have elicited an untrue admission of guilt, the interview was properly admitted.⁸⁸

Single words, phrases, sentences or entire answers may be excised from an interview if they are inadmissible (or may be deleted by consent with the prosecutor).⁸⁹ Such deletions will often have no significant impact on the “flow” of the interview, when heard in its edited form. Where deletions do have a significant impact upon the comprehensibility of an interview, the judge should direct jurors prior to playing the tape that they will be hearing an edited tape which has had irrelevant matters deleted from it.

A question or answer may always be excluded if the probative value of that exchange is outweighed by its prejudicial effect.⁹⁰ Evidence is prejudicial if there is a real danger the jury will handle it irrationally, and the prejudice cannot be cured by judicial directions.⁹¹

[Q.2140] Denials in a record of interview and calling the defendant at trial

For the defence counsel to assess, as a matter of strategy, if it is in the best interests of a defendant to make application to exclude part or all of a record of interview, consideration may need to be given to whether or not the defendant is to give sworn evidence or remain mute at the trial. Where the defendant does not give sworn evidence, and there is no record of interview produced as part of the Crown case, there may be no evidence of the response by the defendant to the allegations.

A record of interview which contains denials only, or exculpatory statements, is not admissible as it is merely a “self-serving”⁹² or “prior consistent” statement. It may, however, be admitted by consent. Alternatively, it may be admissible as demonstrating the “first opportunity” response of the accused when confronted with the allegations made against him or her by the accuser.⁹³ That is, exculpatory statements, when received into evidence, may be relied upon by the defence⁹⁴ and are generally admitted in fairness to a defendant.⁹⁵ Otherwise the only evidence of a response of an accused to allegations will be that of the defendant in giving sworn evidence.

In a joint trial, a defendant may, if consent is given, rely on the record of interview of a co-defendant.⁹⁶

A record of interview may contain both admissions and denials (including exculpatory explanations). In those circumstances, the entire record of interview is admissible – the Crown cannot put in only the damaging questions and answers, or have the admissions treated as evidence and the rest rejected as hearsay.⁹⁷

When an accused gives evidence at trial, the direction must not include any reference to whether the accused is under more stress than any other witness.⁹⁸

In a joint trial, where one accused implicates the other, a separate trial will only be granted if the unfair prejudice cannot be cured by judicial directions.⁹⁹

[Q.2160] Confession/record of interview of co-defendant

The common law position on this issue has been significantly altered by [s 83 of the *Evidence Act 2008*](#).

At common law, where a joint trial is held, the record of interview of one accused may implicate a co-accused. In those circumstances, the confession is only admissible against its maker and a jury should be carefully directed that it cannot be used as evidence against a co-accused.¹⁰⁰

[Section 83 of the Evidence Act 2008](#) provides for the exclusion of evidence of admissions as against third parties.

The effect of this provision is that in a joint trial, the record of interview of one defendant may be admitted in the trial of a co-defendant. This significantly alters the common law. That is, in a trial of 2 defendants, D1 and D2, the record of interview by D1 will be admissible in the trial of D2, but only if D2 consents pursuant to [s 83\(2\)](#). When that occurs, the whole of the record of interview must be admitted, not just part of it.¹⁰¹ Consent must be given, at the latest, before the commencement of the judge's charge to enable appropriate directions to be given. If counsel for D2 relies upon the record of interview of D1 in the final address, consent must be given before final addresses commence. On one view, consent should be given after the admission is admitted in the case of D1.¹⁰²

Of course, if D2 does not consent to the use of D1's record of interview in the case of D2, then the common law rule continues to apply.¹⁰³

In order for [s 83](#) to be engaged, there must be evidence of an “admission” – if the evidence does not amount to an admission, the argument based on [s 83\(1\) of the Evidence Act 2008](#), fails at the threshold.¹⁰⁴

If answers given by one accused in his or her interview are such that their probative value is outweighed by their prejudicial effect (or they are unfair) to the trial of the co-accused, there is a discretion in the trial judge to exclude those answers.¹⁰⁵

In a joint trial, where one accused implicates the other, a separate trial will only be granted if the unfair prejudice cannot be cured by judicial directions.¹⁰⁶

Judicial discretions to exclude confessions, admissions, questions in the interview

[Q.2180] The fairness discretion

The discretion to exclude admissions which would be unfair to a defendant is embodied in [s 90 of the Evidence Act 2008](#).¹⁰⁷

The central issue is whether the evidence of admissions should not have been admitted, because having regard to the circumstances in which they were made, it would be unfair to the defendant to use the evidence. That question requires consideration of whether there was identified some aspect of the circumstances in which the admissions were made that

revealed why the use of the evidence, at the trial of the person who made the admissions “would be unfair”. That is, the focus on s 90 [of the *Evidence Act 1995 (NSW)*] falls upon the fairness of using the evidence at trial, not directly upon characterising the circumstances in which the admissions were made, including the means by which the admissions were elicited, as “fair” or “unfair”...The consequence is that the discretion given by s 90 will be engaged only as a final or “safety net” provision.¹⁰⁸

Where the issue is one of unfairness, the onus is upon the accused to justify the exclusion of the evidence, on the balance of probabilities.¹⁰⁹

Matters which have been regarded as relevant to the issue of unfairness in questioning include:

- Non-compliance with legislative requirements.¹¹⁰
- “Pretext conversations” – admission obtained by a victim telephoning an alleged offender, with the call being recorded by police – may be admissible.¹¹¹
- Covert police recording in a park – was admissible.¹¹²
- It is improper to subject a person in custody to any form of cross-examination, including repeated expressions of disbelief.¹¹³ Questioning is not to be regarded as unfair merely because it is persistent – it is a matter of degree whether the persistence has crossed the line to render it unfair.¹¹⁴
- Admissions elicited as a result of a significant misleading of the accused were excluded pursuant to the unfairness discretion.¹¹⁵
- “Hoax”- police officers acted as criminals, gained the trust of a suspect and thereby elicited a confession or admission may not enliven the fairness discretion.¹¹⁶
- Admissions were made to a person not in authority. They were overheard by a police officer, but not confirmed on tape. While s 464H of the *Crimes Act 1958* did not apply, the evidence was excluded in the exercise of the fairness discretion.¹¹⁷
- Admissions made during an armed police siege were not excluded by s 90.¹¹⁸
- Admissions made to Crown Casino “special employees” who had failed to caution the suspect, and also the subsequent admissions made to police which were tainted by the earlier failure to caution by Crown Casino “special employees”.¹¹⁹
- Admissions made to a Drug Court case worker, in the course of complying with a drug treatment order, the admissions were properly excluded as unfair pursuant to the *Evidence Act 2008*, s 90.¹²⁰

[Q.2200] Excluding improperly or illegally obtained admissions

The discretion to exclude improperly or illegally obtained evidence (including admissions) is provided for in ss 138¹²¹ and s 139 of the *Evidence Act 2008*.

This discretion in s 138 adopts the common law “public policy” discretion.

The onus of proof is on the party seeking exclusion of the evidence to demonstrate that it is improperly or illegally obtained.¹²² Once that onus is discharged, the onus is on the party seeking admission of the evidence to satisfy the court that the desirability of admitting the admission outweigh the undesirability of admitting it, given the way it was obtained.

This discretion has been exercised where a court marked its disapproval of police methods of questioning, or conduct, after weighing competing considerations of public policy.¹²³

The competing considerations are the community interest in convicting the guilty and “the public interest in securing proper conduct on the part of law enforcement officers and in avoiding any appearance of curial approval or condonation of improper police methods”.¹²⁴ King CJ in *R v Szach* (1980) 2 A Crim R 321 continued to elaborate on the public policy principles at stake when he said:¹²⁵

In making their inquiries the police were entitled and, indeed, would be expected to employ all legitimate investigatory skills ... Such legitimate investigatory tactics are not to be confused with falsehood or dishonest trickery. Honesty is to be demanded of the police and other law enforcement agencies at all times. Falsehood, express or implied, and dishonest trickery must always bring the condemnation of the courts however worthy the ends sought to be achieved by such methods. The end can never justify such means, and the courts must be ever ready to use the discretion to exclude evidence obtained by such means, even if technically admissible, in order to preserve the stream of justice from pollution and protect the citizen from the possibility of oppression. Devices and stratagems have a part to play in police investigation, but they must not be allowed to degenerate into dishonesty in any of its forms.

A confession may be excluded on public policy grounds where there is an unlawful arrest and detention in custody by police for the sole purpose of interrogation,¹²⁶ or where police use a “holding charge” to improperly detain a suspect.¹²⁷

Where there has been a failure to comply with the *Service and Execution of Process Act 1992* (Cth) combined with a deliberate disregard of the provisions of s 464H of the *Crimes Act 1958*, the discretion has been exercised to exclude an interview.¹²⁸

In *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385, the accused was questioned without being cautioned pursuant to s 464A(3) of the *Crimes Act 1958*. He was not informed of his right to communicate with a friend, relative or lawyer in compliance with s 464C and the initial questioning was not tape recorded. This conduct amounted to such a significant breach of the statutory duties of the police that the confessional statement ought to have been excluded “not only on the ground of unfairness but also upon the ground of public policy”.¹²⁹

Secretly recorded conversations by police acting undercover¹³⁰ and “wired” police informers¹³¹ have been admitted where there was no public interest in rejecting the admissions. But where an undercover police officer was used to question an accused at a time when he could have been formally interviewed by police, the conversation was excluded in the exercise of both the public policy and fairness discretions.¹³²

In *R v Roba* (2000) 110 A Crim R 245; [2000] VSC 96, the conversation with the accused “was conducted by the undercover policeman who essentially fashioned its course”.¹³³ Likewise in *R v Juric* (2002) 4 VR 411; 129 A Crim R 408; [2002] VSCA 77,¹³⁴ the clandestine tape recording of conversations between Juric and another prisoner (acting as an agent of the police) should have been excluded in the exercise of discretion. In that case the accused's freedom to choose to speak to the police had been seriously impugned with the police using their agent to elicit material after Juric declined to answer their questions.¹³⁵ The thrust of these “eavesdropping cases”¹³⁶ is that admissions recorded by way of electronic device will be admissible in the absence of subterfuge or other improper behaviour by the investigating authorities, and where such authorities have played an essentially passive role.¹³⁷

Evidence obtained as a result of search warrants that had not been properly sworn by police was excluded.¹³⁸

DNA evidence that was obtained without obtaining “informed consent” may be excluded pursuant to s.464S, although, after a *voire dire*, the trial judge was correct to find there was “informed consent” to the taking of the forensic sample.¹³⁹ It was also submitted that, when explaining the procedure for the taking of a DNA sample, the police failed to use “language likely to be understood by the person”¹⁴⁰ however, as the applicant had appeared to have understood the procedure on a previous occasion, it was held to have been properly admitted. Finally, where the applicant had not been informed he could request the procedure be conducted in the presence of a medical practitioner (in breach of s.464S(1)(c)), it was held that the circumstances justified the reception of the evidence pursuant to s.464ZE(2A).¹⁴¹ The provisions of s.464ZE(2A) closely mirror the provisions of s.138() of the *Evidence Act 2008*.¹⁴²

[Q.2220] Evidence Act 2008 – s 139 – Cautioning of persons

Section 139 of the *Evidence Act 2008* deems “improperly obtained” evidence (for the purposes of s 138) to include admissions made when a caution was required but not given to a suspect.¹⁴³

Where a suspect was told on a tape recording that what he says on tape can be used in court, but was not informed of his right to silence, the taped interview was admitted despite the failure to comply with s 464G.¹⁴⁴

Footnotes

- 1 *Evidence Act 2008*, Dictionary. The Dictionary at the end of the Act also defines “previous representation” as “a representation made otherwise than in the course of giving evidence in the proceeding in which evidence of the representation is sought to be adduced”. The Dictionary also defines “representation” to include “(a) an express or implied representation (whether oral or in writing); or (b) a representation to be inferred from conduct; or (c) a representation not intended by its maker to be communicated to or seen by another person; or (d) a representation that for any reason is not communicated.”
- 2 *Evidence Act 2008*, Dictionary; *ML v The Queen* [2011] VSCA 193.
- 3 *Evidence Act 2008*, s 82; see discussion at [EA.PT2.2.20].
- 4 See Confession/record of interview of co-defendant at [Q.2160]
- 5 For pre-*Evidence Act 2008* cases on “voluntariness”, see [Q.2020].
- 6 *Higgins v The Queen* [2007] NSWCCA 56 at [26]: Oppressive conduct may involve mental or psychological pressure, or a combination of factors; *R v Tai Shum Tang* [2010] VSC 578; see discussion at [EA.83.20].
- 7 See *R v Aujla* [2012] VSC 213 at [4] (Forrest J).
- 8 Australian Law Reform Commission, *Uniform Evidence Law* (ALRC 102, 2005) at [10.55]. Available at <http://www.alrc.gov.au/>.
- 9 *Evidence Act 2008*, s 85(1)(a), (b); see discussion at [EA.85.20].
- 10 *Evidence Act 2008*, s 85(2).
- 11 *Evidence Act 2008*, s 85(3)(a) and (b).
- 12 Australian Law Reform Commission, *Uniform Evidence Law* (ALRC 102, 2005) at [10.57]. Available at <http://www.alrc.gov.au/publications/>.
- 13 *Evidence Act 2008*, s 86; see discussion at [EA.86.20].
- 14 See discussion at [EA.90.20].
- 15 *Evidence Act 2008*, s 138(1); see discussion at [EA.138.20].

- 16 *Evidence Act 2008*, s 138(2); see discussion at [EA.138.20].
- 17 *Evidence Act 2008*, s 139(1). See *Director of Public Prosecutions (Vic) v Hou* (2020) 62 VR 1; [2020] VSCA 190 at [148] and [149].
- 18 *Evidence Act 2008*, s 139(2).
- 19 See *R v Auja* [2012] VSC 213 at [4] (Forrest J) and *Willis v The Queen* (2016) 261 A Crim R 151; [2016] VSCA 176 at [104]. See also *Director of Public Prosecutions (Vic) v Natale* [2018] VSC 339.
- 20 *McDermott v The King* (1948) 76 CLR 501; 49 SR (NSW) 26; 66 WN (NSW) 4 at 511 (CLR); *Sinclair v The King* (1946) 73 CLR 316; *R v Lee* (1950) 82 CLR 133 at 144; *Cleland v The Queen* (1982) 151 CLR 1; 57 ALJR 15; 43 ALR 619; *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165.
- 21 *McDermott v The King* (1948) 76 CLR 501; 49 SR (NSW) 26; 66 WN (NSW) 4 at 511 (CLR). See *Collins v The Queen* (1980) 31 ALR 257 at 309–311: “If the interrogation of a particular confessionalist overbears his will, so that he speaks because the interrogation obliges him to do and not because he freely chooses to do so, the confession is inadmissible”.
- 22 See *Collins v The Queen* (1980) 31 ALR 257 at 305–311.
- 23 *Wendo v The Queen* (1963) 109 CLR 559; 37 ALJR 77; *Cornelius v The King* (1936) 55 CLR 235 at 239; *Sinclair v The King* (1946) 73 CLR 316 at 318; *MacPherson v The Queen* (1981) 147 CLR 512; 55 ALJR 594; 37 ALR 81 at 519 (CLR); *R v Semyraha* [2001] 2 Qd R 208; (2000) 118 A Crim R 1; [2000] QCA 303; *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [68].
- 24 *Collins v The Queen* (1980) 31 ALR 257 at 308–309; *Director of Public Prosecutions v Starr* [1999] VSC 143 at [29], per Eames J; *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [66]–[94]. Also see *Director of Public Prosecutions (Vic) v Hollis* (2019) 58 VR 695; [2019] VSCA 110.
- 25 See *R v Li* [1993] 2 VR 80 at 87; *R v Laracy* (2007) 180 A Crim R 19; [2007] VSC 19. See also *Director of Public Prosecutions (Vic) v Natale* [2018] VSC 339 at [41].
- 26 In *Van der Meer v The Queen* (1988) 62 ALJR 656; 35 A Crim R 232; 82 ALR 10 the majority held that the interview was not involuntary. See also *Cornelius v The King* (1936) 55 CLR 235; *R v Weiss* (2004) 8 VR 388; 145 A Crim R 478; [2004] VSCA 73 at [28]–[36].
- 27 *R v Pirimona* (unreported, TASCRA, 6 November 1998).
- 28 *R v Zaveckas* [1970] 1 All ER 413 (CA).
- 29 See *Cross on Evidence* (LexisNexis Butterworths, 1996) at [33640].
- 30 *R v Dean* (1896) 17 LR (NSW) 224; *R v Beere* [1965] Qd R 370; *R v Su* [1997] 1 VR 1; (1995) 129 FLR 120 at 52–53 (VR): the critical issue is what effect the

words had upon the accused; *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [66]–[94].

31 *R v Bodsworth* [1968] 2 NSW 132; *Director of Public Prosecutions v Starr* [1999] VSC 143 at [30], per Eames J, referring to a ruling in *R v Kyu Hyuk Kim* (unreported, VSC, Eames J, 8 August 1997).

32 *Tofilau v The Queen* (2007) 231 CLR 396; 81 ALJR 1688; 174 A Crim R 183; 238 ALR 650; [2007] HCA 39 at [268]–[292] and [323], per Callinan, Heydon and Crennan JJ.

33 *R v Ng* (2002) 5 VR 257; 136 A Crim R 299; [2002] VSCA 108 at [77]–[120].

34 An “admission” is defined in *Evidence Act 2008*, Dictionary. See [Q.2000]. Arguably, it has the same meaning pursuant to the provisions of the *Crimes Act 1958*. However, the *Evidence Act 2008* does not define “confession” or “questioning”, terms applied in *Crimes Act 1958*, s 464. For the common law definition, see *R v Hazim* (1993) 69 A Crim R 371 at 379–380; *R v Hinton* (1999) 150 FLR 20; 103 A Crim R 142; [1999] ACTSC 20 at [30]–[32] (Higgins J). An “admission” is defined as a previous representation that is (a) made by a person who is or becomes a party to a proceeding (including a defendant in a criminal proceeding) and (b) adverse to the person's interest in the outcome of the proceeding. Also see *R v Jamieson* (2003) 9 VR 119; [2003] VSCA 224 at [66]–[68].

35 *Crimes Act 1958*, s 464H.

36 *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385; *Heatherington v The Queen* (1994) 179 CLR 370; 68 ALJR 418; 71 A Crim R 18; 120 ALR 591. In *Kelly v The Queen* (2004) 218 CLR 216; 78 ALJR 538; 205 ALR 274; [2004] HCA 12, the High Court held (per Gleeson CJ, Hayne and Heydon JJ), that, under the Tasmanian legislation (*Criminal Law (Detention and Interrogation) Act 1995* (Tas), s 8(1)(b)), a statement made to police after a video-recorded interview was completed was not “made in the course of questioning” and was therefore admissible. The High Court noted the Victorian approach at [32] and [37].

37 *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 at 194 (CLR), per Brennan, Dawson and Gaudron JJ.

38 *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 at 183 (CLR).

39 *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 at 197–198 (CLR).

40 *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 at 227 (CLR).

- 41 *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110
ALR 385 at 219 (CLR); *R v Cvitko* (2001) 159 FLR 403; 119 A Crim R 344;
[2001] SASC 72 at [19].
- 42 *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110
ALR 385 at 194 (CLR), per Brennan, Dawson and Gaudron JJ.
- 43 *Heatherington v The Queen* (1994) 179 CLR 370; 68 ALJR 418; 71 A Crim R 18;
120 ALR 591; applied in *R v Roberts* (2004) 9 VR 295; [2004] VSCA 1 at [48].
- 44 *Heatherington v The Queen* (1994) 179 CLR 370; 68 ALJR 418; 71 A Crim R
18; 120 ALR 591 at 593 (ALR).
- 45 *Heatherington v The Queen* (1994) 179 CLR 370; 68 ALJR 418; 71 A Crim R
18; 120 ALR 591 at 595 (ALR).
- 46 *Heatherington v The Queen* (1994) 179 CLR 370; 68 ALJR 418; 71 A Crim R
18; 120 ALR 591 at 596 (ALR).
- 47 *Heatherington v The Queen* (1994) 179 CLR 370; 68 ALJR 418; 71 A Crim R
18; 120 ALR 591 at 604 (ALR).
- 48 *R v Frugtniet* [1999] 2 VR 297; (1999) 107 A Crim R 161; [1999] VSCA 58
at [60]–[68].
- 49 *Viet Hop Vu v Randoe* (1996) 84 A Crim R 473.
- 50 *Nicholls v The Queen* (2005) 219 CLR 196; 79 ALJR 468; 213 ALR 1; [2005]
HCA 1.
- 51 *Viet Hop Vu v Randoe* (1996) 84 A Crim R 473; *R v Laracy* (2007) 180 A Crim R
19; [2007] VSC 19 at [107]–[115]; *Director of Public Prosecutions v MD* (2010)
29 VR 434; 205 A Crim R 349; [2010] VSCA 233.
- 52 *R v Schaeffer* (2005) 13 VR 337; 159 A Crim R 101; [2005] VSCA 306 at [43]–
[49]; also see *R v Bartlett* (unreported, Vic CCA, 14 September 1994).
- 53 *Crimes Act 1958*, s 464H(2)(a), (b). See *R v Abbas (Ruling 35)* [2019] VSC 855.
- 54 *Crimes Act 1958*, s 464H(3).
- 55 *R v Vollmer* [1996] 1 VR 95 at 118–119, 121.
- 56 *John Yeates (a pseudonym) v R* [2023] VSCA 72 at [21], [28], [32], [35]. See
Burns v R (1975) 132 CLR 258, 262.
- 57 *John Yeates (a pseudonym) v R* [2023] VSCA 72 at [35].
- 58 *Marston v R* [2022] VSCA 253 at [5], [23] – [34]
- 59 *Crimes Act 1958*, s 464H(1); *Director of Public Prosecutions v Starr* [1999] VSC
143 at [4]–[9], per Eames J.
- 60 *Crimes Act 1958*, s 464H(2); see *Pollard v The Queen* (1992) 176 CLR 177; 67
ALJR 193; 64 A Crim R 393; 110 ALR 385, per Mason CJ. See also *Director of
Public Prosecutions (Vic) v Tran (Ruling No 1)* [2019] VSC 823.
- 61 *R v Dupas* [2001] VSCA 109 at [37]–[38].
- 62 *Crimes Act 1958*, s 464G; *R v Laracy* (2007) 180 A Crim R 19; [2007] VSC 19
at [96]–[102].

- 63 M Aronson and J Hunter, *Litigation: evidence and procedure* (6th ed, LexisNexis Butterworths, 1998), pp 333–335.
- 64 See discussion at [EA.84.20].
- 65 *R v Plevac* (1995) 84 A Crim R 570 at 579–581 where the New South Wales Court of Criminal Appeal sets out 11 propositions regarding the admissibility of questions and answers in interviews.
- 66 *R v Plevac* (1995) 84 A Crim R 570; *R v Tey*s (2001) 161 FLR 44; 119 A Crim R 398; [2001] ACTSC 29 at [54]–[57], per Miles CJ.
- 67 *R v Plevac* (1995) 84 A Crim R 570 at 580, principle 5; *R v Grills* (1910) 11 CLR 400; 11 SR (NSW) 297; 27 WN (NSW) 217 at 413, 419 (CLR).
- 68 *R v Plevac* (1995) 84 A Crim R 570 at 580, principle 8.
- 69 *R v Dolan* [1962] Qd R 449.
- 70 *R v Plevac* (1995) 84 A Crim R 570 at 580, principle 7.
- 71 For example, an answer to the caution such as “Yeah, I’ve done this before, go on” is likely to be excluded.
- 72 *R v Fotou* (unreported, VSCA, 26 June 1996) applying *R v Tiplea* (unreported, Vic CCA, 12 April 1995), p 8: “It is trite law that while persistent and thorough questioning may be appropriate, cross-examination of this nature is improper”.
- 73 *McDermott v The King* (1948) 76 CLR 501; 49 SR (NSW) 26; 66 WN (NSW) 4 at 511, 515 (CLR); *R v Lee* (1950) 82 CLR 133 at 144; *R v Van der Meer* (1988) 62 ALJR 656; 35 A Crim R 232; 82 ALR 10 at 259 (A Crim R).
- 74 *R v Amad* [1962] VR 545 at 548, per Smith J; *R v Tey*s (2001) 161 FLR 44; 119 A Crim R 398; [2001] ACTSC 29 at [54]–[57], per Miles CJ.
- 75 *R v Pritchard* [1991] 1 VR 84; (1991) 49 A Crim R 67 at 93 (VR).
- 76 A leading question is one which either suggests the desired answer or assumes the existence of disputed facts: *R v Saunders* (1985) 15 A Crim R 115 at 118.
- 77 *R v Jukov* (1994) 76 A Crim R 353.
- 78 *R v Pritchard* [1991] 1 VR 84; (1991) 49 A Crim R 67 at 93.
- 79 P Gillies, *The law of criminal investigation* (The Law Book Company Limited, 1982), p 122.
- 80 *Grey v Australian Motorists & Central Insurance Co Ltd* [1976] 1 NSWLR 669 at 675–676, per Glass JA; see *Cross on Evidence* (LexisNexis Butterworths, 1996) at [33465], *Statements of mixed law and fact*. This was a civil case about the assignment of a debt in which the question was asked: “You sold each of these debts to Beneficial Finance Corporation Ltd?” That question was held to have been properly excluded because the answer depended upon the application of a legal standard by the witness.
- 81 *Palmer v The Queen* (1998) 193 CLR 1; 72 ALJR 254; 96 A Crim R 213; 151 ALR 16; see also *R v Somers* (unreported, VSCA, 15 June 1998); *R v O’Neill*

- (2003) 7 VR 408; [2003] VSCA 204 at [20]–[26]; *R v Cupid* [2004] VSCA 183; *R v Bajic* (2005) 12 VR 155; 154 A Crim R 196; [2005] VSCA 158.
- 82 *R v Wills* (1985) 39 SASR 35; 16 A Crim R 247 at 37 (SASR); at 248–249 (A Crim R), per King CJ.
- 83 *R v Wyatt* [1972] VR 902 at 905; *R v Noakes* (1986) 42 SASR 489 (FC); *R v Smith* (1994) 63 SASR 123; 75 A Crim R 327.
- 84 *Hawkins v The Queen* (1994) 181 CLR 440; 68 ALJR 854; 124 ALR 366; *R v Anderson* (1991) 1 NTLR 149; 105 FLR 25; 57 A Crim R 143.
- 85 *R v Anderson* (1991) 1 NTLR 149; 105 FLR 25; 57 A Crim R 143 at 149 (A Crim R).
- 86 *R v Simmons* (1995) 79 A Crim R 31.
- 87 *Kwabena Poku* [1978] Crim LR 488.
- 88 *R v Weiss* (2004) 8 VR 388; 145 A Crim R 478; [2004] VSCA 73 at [23]–[36].
- 89 *Kilby v The Queen* (1973) 129 CLR 460; 47 ALJR 369; 1 ALR 283 at 473 (CLR), per Barwick CJ.
- 90 *R v Plevac* (1995) 84 A Crim R 570 at 580–581, principles 9–11.
- 91 *R v Christie* [1914] AC 545.
- 92 *R v Kochnieff* (1987) 33 A Crim R 1 at 4.
- 93 See *Nguyen v The Queen* (2020) 269 CLR 299; 94 ALJR 686; [2020] HCA 23 at [30], [46]; *R v Su* [1997] 1 VR 1; (1995) 129 FLR 120 at 64 (VR); *R v Donaldson* (1976) 64 Cr App R 59 at 65; *R v Pearce* (1979) 67 Crim App R 365; *R v Duncan* (1981) 73 Cr App R 359 at 365; *R v Hammond* (1985) 82 Cr App R 65; *Sharp v Hotel International Ltd* [1969] VR 103 at 109–110; *R v Williamson* [1972] 2 NSWLR 281 at 295; *Spence v Demasi* (1988) 48 SASR 536; 8 MVR 1 at 540 (SASR), per Cox J; *M v The Queen* (1994) 62 SASR 364; 72 A Crim R 269 at 274 (A Crim R); *R v Fotou* (unreported, VSCA, 26 June 1996), p 10.
- 94 *Lopes v Taylor* (1970) 44 ALJR 412; *Herbert v The Queen* (1982) 62 FLR 302; 6 A Crim R 1; 42 ALR 631; *Waterhouse v Gilmore* (1988) 12 NSWLR 270 at 283; *Van der Meer v The Queen* (1988) 62 ALJR 656; 35 A Crim R 232; 82 ALR 10 at 21, 28, 39–40 (ALR); *R v Callaghan* [1994] 2 Qd R 300; (1993) 70 A Crim R 350; *M v The Queen* (1994) 62 SASR 364; 72 A Crim R 269; LJW Aitken, “The admissibility of self exculpatory statements” (1991) 15 Crim LJ 42.
- 95 See *Nguyen v The Queen* (2020) 269 CLR 299; 94 ALJR 686; [2020] HCA 23 at [30], [46].
- 96 *Evidence Act 2008*, s 83; see [Q.2160], [EA.83.20]. For a discussion of the admissibility of mixed statements, see *Nguyen v The Queen* (2020) 269 CLR 299; 94 ALJR 686; [2020] HCA 23 at [19]–[25].
- 97 *Spence v Demasi* (1988) 48 SASR 536; 8 MVR 1 at 540 (SASR), per Cox J; *R v Duncan* (1981) 73 Cr App R 359 at 365; *R v Sharp* [1988] 1 WLR 7; [1988] 1 All ER 65 (HL); *Lobban v The Queen* [1995] 1 WLR 877; [1995] 2 All ER 602

at 883 (WLR) (PC); *M v The Queen* (1994) 62 SASR 364; 72 A Crim R 269. See *Nguyen v The Queen* (2020) 269 CLR 299; 94 ALJR 686; [2020] HCA 23 at [26]–[30], [46].

98 *Awad v R* [2022] HCA 36 at [8], [89].

99 *Feeny v R* [2022] VSCA 113 at [27], [46]; see *R v Demirok* [1976] VR 244, *Jones v Waghorn* (1991) 55 A Crim R 159, 164 per Crockett J.; *R v Gibb & McKenzie* [1983] 2 VR 155 per Young CJ, Crockett and King JJ.

100 *Bannon v The Queen* (1995) 185 CLR 1; 70 ALJR 25; 83 A Crim R 370; 132 ALR 87 at 22 (CLR), per Dawson, Toohey and Gummow, JJ: “What is said out of court and not in the presence of the co-accused is not evidence in the trial of the other accused”; *R v Lowery (No 1)* [1972] VR 554; *R v Torney* (1983) 8 A Crim R 437 (Vic CCA).

101 *Evidence Act 2008*, s 83(3).

102 See S Odgers, S Odgers, *Uniform Evidence Law* (10th ed, Thomson Reuters, 2012) at [1.3.4960]; *R v Rahme* [2001] NSWCCA 414.

103 See S Odgers, S Odgers, *Uniform Evidence Law* (10th ed, Thomson Reuters, 2012) at [1.3.4960]; *R v Rahme* [2001] NSWCCA 414.

104 *Abernethy v The Queen* (2020) 282 A Crim R 513; [2020] VSCA 96 at [61], [81]–[82].

105 *R v Caine* (1993) 68 A Crim R 233 at 244; and see *Evidence Act 2008*, s 137 discretion to exclude evidence.

106 *Feeny v R* [2022] VSCA 113 at [27], [46]; see *R v Demirok* [1976] VR 244, *Jones v Waghorn* (1991) 55 A Crim R 159, 164 per Crockett J.; *R v Gibb & McKenzie* [1983] 2 VR 155 per Young CJ, Crockett and King JJ.

107 See discussion at [EA.84.20]; and see S Odgers, *Uniform Evidence Law* (10th ed, Thomson Reuters, 2012) at [1.3.5760]–[1.3.5870].

108 *Em v The Queen* (2007) 232 CLR 67; 81 ALJR 1896; 174 A Crim R 540; 239 ALR 204; [2007] HCA 46 at [107], [109]–[110], per Gummow and Hayne JJ; and see: *Director of Public Prosecutions (Vic) v Myles* [2021] VSCA 324 at [33]–[37].

109 *Evidence Act 2008*, s 142(1); *Em v The Queen* (2007) 232 CLR 67; 81 ALJR 1896; 174 A Crim R 540; 239 ALR 204; [2007] HCA 46 at [63].

110 *R v Lee* (1950) 82 CLR 133 at 151: “What is impropriety in police methods and what would be unfairness in admitting in evidence against an accused person a statement obtained by improper methods must depend on the circumstances of each particular case ...” See also *McDermott v The King* (1948) 76 CLR 501; 49 SR (NSW) 26; 66 WN (NSW) 4 at 506–507, 513 (CLR); *Foster v The Queen* (1993) 67 ALJR 550; 66 A Crim R 112; 113 ALR 1 at 6–7 (ALR); *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 at 201 (CLR); *R v Lobban* (2000) 77 SASR 24; 112 A Crim R 357; [2000]

- SASC 48 at [43]–[58]; *R v Juric* (2002) 4 VR 411; 129 A Crim R 408; [2002] VSCA 77 at [24]–[25], [50]–[63]; *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [109]–[114]; *R v Ul-Haque* (2007) 177 A Crim R 348; [2007] NSWSC 1251 at [104]–[105], per Adams J.
- 111 *Pavitt v The Queen* (2007) 169 A Crim R 452; [2007] NSWCCA 88.
- 112 *Em v The Queen* (2007) 232 CLR 67; 81 ALJR 1896; 174 A Crim R 540; 239 ALR 204; [2007] HCA 46.
- 113 *R v Smith* [1964] VR 95 at 97; *R v Clarke* (1997) 97 A Crim R 414 at 419.
- 114 *R v Amad* [1962] VR 545 at 548; *R v Pritchard* [1991] 1 VR 84; (1991) 49 A Crim R 67 at 92 (VR), 76 (A Crim R): “A polite but clever cross-examination may operate insidiously to induce unfairly the giving of incriminatory answers”. And see *R v Su* (2003) 7 VR 13; 142 A Crim R 338; [2003] VSC 305 at [65]–[69].
- 115 *R v Heaney* [1998] 4 VR 636; (1998) 100 A Crim R 450 at 647 (VR).
- 116 *Tofilau v The Queen* (2007) 231 CLR 396; 81 ALJR 1688; 174 A Crim R 183; 238 ALR 650; [2007] HCA 39.
- 117 *R v Schaeffer* (2005) 13 VR 337; 159 A Crim R 101; [2005] VSCA 306 at [6].
- 118 *R v Naa* (2009) 76 NSWLR 271; 197 A Crim R 192; [2009] NSWSC 851.
- 119 *Director of Public Prosecutions (Vic) v Hou* (2020) 62 VR 1; [2020] VSCA 190 at [147]–[149].
- 120 *Director of Public Prosecutions (Vic) v Myles* [2021] VSCA 324 at [33]–[37].
- 121 See discussion at [EA.138.20]–[EA.138.100]; “impropriety” has a broad meaning – *Robinson v Woolworths Ltd* (2005) 64 NSWLR 612; 158 A Crim R 546; 227 ALR 353; [2005] NSWCCA 426; and see *Fleming v The Queen* (2009) 197 A Crim R 282; [2009] NSWCCA 233; S Odgers, *Uniform Evidence Law* (10th ed, Thomson Reuters, 2012) at [1.3.14880]–[1.3.15320]; *Dupas v The Queen* (2012) 218 A Crim R 507; [2012] VSCA 328 at [116]–[123], [153].
- 122 See *Willis v The Queen* (2016) 261 A Crim R 151; [2016] VSCA 176 at [110]–[111].
- 123 *Bunning v Cross* (1978) 141 CLR 54; 52 ALJR 561; 19 ALR 641 at 77 (CLR); *Foster v The Queen* (1993) 67 ALJR 550; 66 A Crim R 112; 113 ALR 1 at 7 (ALR); *Cleland v The Queen* (1982) 151 CLR 1; 57 ALJR 15; 43 ALR 619 at 34 (CLR); *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [96]–[115].
- 124 *R v Szach* (1980) 2 A Crim R 321 at 340 (SACCA).
- 125 *R v Szach* (1980) 2 A Crim R 321 at 340–341 (SACCA).
- 126 *Foster v The Queen* (1993) 67 ALJR 550; 66 A Crim R 112; 113 ALR 1.
- 127 *R v Hallam* (1985) 42 SASR 126; 18 A Crim R 221 (FC).
- 128 *R v Cvitko* (2001) 159 FLR 403; 119 A Crim R 344; [2001] SASC 72 at [75]–[81], per Martin J.

- 129 *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 at 197 (CLR), per Brennan, Dawson and Gaudron JJ. Applied in *R v Su* (2003) 7 VR 13; 142 A Crim R 338; [2003] VSC 305 at [61]; *R v KS* (2003) 6 VR 264; 139 A Crim R 553; [2003] VSC 418.
- 130 *R v Swaffield* (1998) 192 CLR 159; 72 ALJR 339; 96 A Crim R 96; 151 ALR 98; *R v Lewis* (2000) 1 VR 290; [2000] VSCA 140 at [49]–[59]; see also *R v Franklin* [1998] VSC 217, per Vincent J; *R v Franklin* (2001) 3 VR 9; 119 A Crim R 223; [2001] VSCA 79 at [156] where the Court of Appeal agreed that the evidence of covertly recorded conversations was properly admitted; *R v Sahin* (2000) 115 A Crim R 413; [2000] VSCA 145; *R v Dewhirst* (2001) 122 A Crim R 403; [2001] VSC 172, per Coldrey J where a secretly taped conversation between a suspect and undercover police officer was excluded.
- 131 *R v Carter* (2000) 1 VR 175; [2000] VSCA 6; *R v Koeleman* (2000) 2 VR 20; [2000] VSCA 141; *R v Heaney* [1998] 4 VR 636; (1998) 100 A Crim R 450 at 644; *R v Lowe* [1997] 2 VR 465; *R v Juric* (2002) 4 VR 411; 129 A Crim R 408; [2002] VSCA 77 at [44]–[46].
- 132 *R v Roba* (2000) 110 A Crim R 245; [2000] VSC 96, per Coldrey J.
- 133 *R v Roba* (2000) 110 A Crim R 245; [2000] VSC 96 at 349–350.
- 134 *R v Juric* (2002) 4 VR 411; 129 A Crim R 408; [2002] VSCA 77.
- 135 *R v Juric* (2002) 4 VR 411; 129 A Crim R 408; [2002] VSCA 77 at [50]–[63], esp at [63].
- 136 See *R v Burns* [1999] SASC 493 at [149]–[151].
- 137 *R v KS* (2003) 6 VR 264; 139 A Crim R 553; [2003] VSC 418 at [32], per Coldrey J. See also *R v Kerr (No 1)* [2015] VSC 64, in which evidence of a covertly recorded conversation with police was admitted.
- 138 *Director of Public Prosecutions v Marijancevic* (2011) 33 VR 440; 219 A Crim R 344; [2011] VSCA 355.
- 139 *Martin (a pseudonym) v R (No 2)* [2022] VSCA 161 at [87]
- 140 *Martin (a pseudonym) v R (No 2)* [2022] VSCA 161 at [94]
- 141 *Martin (a pseudonym) v R (No 2)* [2022] VSCA 161 at [95]
- 142 *Martin (a pseudonym) v R (No 2)* [2022] VSCA 161 at [100]
- 143 See discussion at [Q.3160], [Q.3180] and also see S Odgers, *Uniform Evidence Law* (10th ed, Thomson Reuters, 2012) at [1.3.15340]–[1.3.15400]; For an application of the discretion in *Evidence Act 2008*, s 138, see *R v Aujla* [2012] VSC 213 (Forrest J).
- 144 *Willis v The Queen* (2016) 261 A Crim R 151; [2016] VSCA 176 at [74] per Weinberg and Beach JJA.; Priest JA dissenting.